

2021 P L C (C.S.) 596

[Lahore High Court]

Before Masud Abid Naqvi and Jawad Hassan, JJ

ABDUL WAJID

Versus

NATIONAL DATABASE AND REGISTRATION AUTHORITY and others

Intra Court Appeal No.44 of 2014, heard on 18th November, 2020.

(a) Civil service---

---Contractual employment---Scope---Appellant assailed the dismissal of his constitutional petition which was filed against the termination of his contractual employment---Validity---Contract of employment explicitly showed that the appointment was purely temporary which could be terminated on thirty days' notice or in lieu of payment without assigning any reason---Appellant, at the time of joining, had accepted all the terms and conditions of his contractual employment and he could not resile from the same at belated stage---Record established that the appellant's performance had remained unsatisfactory---Intra court appeal, being bereft of any force, was dismissed.

Chairman NADRA, Islamabad, through Chairman, Islamabad and another v. Muhammad Ali Shah and others 2017 SCMR 1979 ref.

Shahzad Ghohar v. Government of Punjab and Aitchison College through its Board of Governor 2018 PLC (C.S.) Note 1; Muhammad Mohsin Ismail v. Managing Director Punjab Daanish Schools and 2 others 2018 PLC (C.S.) 722; Dr. Abid Ali v. Chief Secretary, Government of Punjab and 3 others 2017 PLC (C.S.) 488; Mubashar Majeed v. Province of Punjab and 3 others 2017 PLC (C.S.) 940; IPC through Secretary v. Arbab Altaf Hussain 2014 SCMR 1573; Kamran Ahmad v. WAPDA 2014 PLC (C.S.) Lah. 332; Miss Naureen Naz Butt v. Pakistan International Airlines through Chairman, PIA and others 2020 SCMR 1625 and Pakistan International Airlines v. Naureen Butt 2017 PLC (C.S.) 923 rel.

(b) Constitution of Pakistan---

---Art. 199---Constitutional petition---Maintainability---Contractual employment---Scope---Contract employee cannot seek enforcement of contractual obligations by invoking constitutional jurisdiction.

Maj. (Retd) Syed Muhammad Tanveer Abbas v. Federation of Pakistan through Secretary Ministry of Interior and another 2019 SCMR 984 and Chairman NADRA, Islamabad v. Muhammad Ali Shah and others 2017 SCMR 1979 ref.

Salman Mansoor for Appellant.

Imran Malik, Law Officer-NADRA for Respondents.

Date of hearing: 18th November, 2020.

JUDGMENT

JAWAD HASSAN, J.----Through this judgment, we intend to decide instant Intra Court Appeal filed under Section 3 of the Law Reforms Ordinance, 1972 (the "Ordinance") against the impugned order dated 10.12.2013 passed in Writ Petition No.23630 of 2010 by the learned Single Judge in Chamber (the "Impugned Order") whereby the Constitutional petition filed by the Appellant was dismissed.

2. Relevant facts of the case are that the Appellant was appointed as Assistant Manager on contract basis in December, 2002 initially for a period of two years as per terms and conditions of the appointment letter. Later on he was given new contract for a period of further five years on the same terms and conditions as of earlier contract. During service, he was given promotion as Deputy Manager vide Notification dated 11.07.2006. Thereafter, his services were terminated on 19.10.2006, the said termination was assailed through departmental appeal which was dismissed and appeal filed thereagainst before the Federal Service Tribunal was also met with the same fate vide judgment dated 29.06.2010. The Appellant assailed aforesaid order before Hon'ble Supreme Court of Pakistan, which resulted into dismissal of appeal vide order dated 16.09.2010 and thereafter, he filed writ petition which was also dismissed, hence this appeal.

3. Learned counsel for the Appellant inter alia contended that the impugned order is against law and facts; that the impugned order is the result of mis-reading and non-reading of record; that the learned Single Judge has failed to appreciate the fact that concept of master and servant was not applicable to the statutory corporation and also failed to observe the regulations as provided under NADRA Employee (Services) Regulations, 2002 for appointment as such the same is liable to be set aside.

4. On the other hand, learned Law Officer vehemently opposed the arguments advanced by the learned counsel for the Appellant and prayed for dismissal of the appeal on the grounds that the Appellant was appointed purely on temporary basis and he was rightly terminated on one month's notice as such there was relationship of master and servant between him and the Respondents. In support of his arguments, he relied on "Chairman NADRA, Islamabad, through Chairman, Islamabad and another v. Muhammad Ali Shah and others" (2017 SCMR 1979).

5. We have heard the arguments and have perused the record.

6. The learned Single Judge in Chamber in the impugned order observed as under:

"From the record it is proved that the Petitioner was appointed on contract for a period of two years. Later on the said contract of employment was changed into

another contract employment for five years. The promotion was also made through a notification but on the same terms and conditions of the contract. The termination letter also refers to Clause-13 of the contract of employment which states: -

"The appointment during the period of contract shall be liable to be terminated on thirty days' notice on either side or payment of pay in lieu thereof, without assigning any reasons"

Further services of the Petitioner were terminated on one month salary under the said clause".

7. It evinces from the record that the Appellant was appointed on contract basis. His appointment was purely temporary. He, after accepting the terms and conditions of his contract employment submitted his joining report. Specific term in the employment contract, containing certain terms and conditions, were inserted which reads as follows:

1. The contract appointment does not confer any right for being placed in the gradation/seniority list of any cadre/group of NADRA Service.
2. The appointment during the period of contract shall be liable to termination on thirty days' notice on either side or payment of basic pay in lieu thereof, without assigning any reason.

8. The above Clauses explicitly show that the appointment was purely temporary which could be terminated on thirty days' notice in lieu of payment without assigning any reason. In the impugned order, the learned Single Judge in Chamber observed that the services of the Appellant were terminated on payment of one month salary under Clause-13.

9. From the above facts and circumstances, we are of the considered view that the Appellant, at the time of joining, has accepted all the terms and conditions of his contract employment, cannot resile from the same at belated stage and also it is established from the record that his performance remained unsatisfactory. We see no illegality or perversity in the impugned order which has been passed in accordance with law and therefore, cannot be interfered with. We fortified our view seeking guidance from the judgment passed by the Hon'ble Division Bench of this Court in case titled "Shahzad Ghohar v. Government of Punjab and Aitchison College through its Board of Governor" (2018 PLC (C.S.) Note 1) in which it has been held as under:--

"It was also made specifically clear that the Employment Contract does not confer on the Appellant any claim/right to permanent employment in the College. In the above situation, the Appellant has himself admitted all the terms and conditions of his Employment Contract, he cannot claim his regularization from this Court rather has rightly been considered to be out of service on the expiry of his contract employment as settled by the parties under the terms of the Employment Contract"

10. This Court in case titled "Muhammad Mohsin Ismail v. Managing Director Punjab Daanish Schools and 2 others" (2018 PLC (C.S.) 722) has also held as under:

"The Respondents have invoked clause-4(b), terminated the services of the Petitioner with immediate effect entitling the Petitioner to receive one month's pay in lieu of the quit service as per terms and conditions, therefore, assertions of the learned counsel for the Petitioner that no notice has been served upon the Petitioner, cannot sustain. The law on this point has been settled by the apex Court of the country in the cases of "Government of Balochistan, Department of Health through Secretary, Civil Secretariat, Quetta v. Dr. Zahida Kakar and 43 others" (2005 SCMR 642) and "Major (R) Nisar Ali v. Pakistan Atomic Energy Commission and another" (2004 PLC (C.S.) 758).

11. The Hon'ble Division Bench of this Court in case titled "Dr. Abid Ali v. Chief Secretary, Government of Punjab and 3 others" (2017 PLC (C.S.) 488) has held as under:

"the employee, after accepting terms and conditions of his contract employment had submitted his joining report. Service of such employee could be terminated without assigning any reason. Employee had no right to claim extension in his contract period as a vested right. Behaviour of employee remained unsatisfactory towards his superior which resulted into his termination."

12. In Case titled "Mubashar Majeed v. Province of Punjab and 3 others" (2017 PLC (C.S.) 940) the Hon'ble Division Bench of this Court has also held that;

"employee could not claim extension of the contract as a matter of right rather it was the prerogative of the competent authority either to dispense with services of such employee or continue with the same by tending the contract."

13. In the case of "IPC through Secretary v. Arbab Altaf Hussain" (2014 SCMR 1573), the Hon'ble Supreme Court has held that "services of contractual employees of the board were not governed by any statutory rules and thus their constitutional petitions filed before the High Court were not competent; secondly, the employment of the said employees was contractual in nature and their services were terminated after due notice as per their contractual terms and conditions of service. Even on such account the constitutional petitions before the High Court were incompetent and had to fail". Additionally, in the case titled "Kamran Ahmad v. WAPDA", (2014 PLC (C.S.) Lahore 332), it was held that the "Petitioner employee was governed under the terms and conditions of contract appointment letter, and terms and conditions of contract of his service were not enforceable through constitutional petition".

14. In "Maj. (Retd) Syed Muhammad Tanveer Abbas v. Federation of Pakistan through Secretary Ministry of Interior and another" (2019 SCMR 984) and "Chairman NADRA, Islamabad v. Muhammad Ali Shah and others" (2017 SCMR 1979), the Hon'ble Supreme Court of Pakistan has held that a contract employee cannot seek enforcement of contractual obligations by invoking writ jurisdiction.

15. Recently, the Hon'ble Supreme Court of Pakistan in "Miss Naureen Naz Butt v. Pakistan International Airlines through Chairman, PIA and others" (2020 SCMR 1625) by upholding the judgment of Division Bench of this Court "Pakistan International Airlines v.

Naureen Butt" (2017 PLC (C.S.) 923) has held that "the established law is that a contract employee, whose period of contract employment expires by efflux of time, carry no vested right to remain in employment of the employer and the Courts cannot force the employer to reinstate or extend the contract of the employee".

16. In view of above discussion, we fully agree with the finding of the learned Single Judge who dismissed the petition and see no illegality or perversity in the impugned order which has been passed in line with the dictates of law and does not warrant any interference by this Division Bench.

17. Resultantly, the instant Appeal, being bereft of any force, is accordingly dismissed.

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Appeal dismissed.